

25STCV33906 25STCV33906

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Case Number: 25STCV33906 Hearing Date: August 14, 2026 Dept: 510

No.

20 - Derrick Lamont Beverly v. Jons International Marketplace, et al.

Defendant Berberian Enterprises, Inc.

dba Jons Marketplace's Demurrer and Motion to Strike to Plaintiff's Complaint

Demurrer

Defendant

Berberian Enterprises, Inc.'s dba Jons Marketplace demurs to all five causes of action alleged in Plaintiff Derrick Lamont Beverly's complaint.

A.

First

Through Third Causes of Action: Assault, Battery & Intentional Infliction of Emotional Distress

Defendant demurs to Plaintiff's first

three causes of action for assault, battery, and intentional infliction of emotional distress. In its demurrer, Defendant contends that while these causes of action are alleged against John Doe only, it still demurs to them "out of an abundance of caution." (Notice of Dem., at p. 2.) The Court notes that the complaint very clearly brings these causes of action only against Doe, and requests relief from only Doe as to these claims in the prayer for relief.

Because these claims are not brought against Defendant, Defendant lacks standing to demur to them. (See CCP § 430.10 ["The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer . . ."].) Defendant never should have filed a demurrer to causes of action that

are not asserted against it, even “out of an abundance of caution.”

The demurrer as to the first, second, and third causes of action is overruled.

B.

Fourth

Cause of Action: Negligence

Plaintiff

alleges sufficient facts to state a claim for negligence. To state a claim for negligence, Plaintiff must allege the elements of (1) “the existence of a legal duty of care,” (2) “breach of that duty,” and (3) “proximate cause resulting in injury.” (McIntyre v.

Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Defendant

argues that it cannot be held liable for negligence because it “never touched the Plaintiff and no touching by the Defendant resulted in harm to the Plaintiff.” (Dem., at pp. 12-13.) While this may be true, Plaintiff sufficiently alleges liability under the doctrine of respondeat superior. “The rule of respondeat superior is familiar and simply stated: an employer is vicariously liable for the torts of its employees committed within the scope of the employment.” (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 296 (Lisa M.)) The key issue is whether the employee’s conduct was “within the scope” of the employment or agency. “[A]n intentional tort gives rise to respondeat superior liability only if it was engendered by the employment.” (Id., at p. 298.)

Here,

Plaintiff alleges that the assault occurred when Doe, Defendant’s employee, was at his place of employment. (Compl., ¶ 8) He further alleges that “Defendant JOHN DOE acting within the course and scope of his employment engaged by Defendants, and each of them, intentionally acted with the intent to cause harmful contact approached Plaintiff and violently assaulted him at the subject premises.” (Id., ¶ 13.) Therefore, Plaintiff alleges sufficient facts to support a theory of liability under respondeat superior against Defendant.

The

demurrer as to the fourth cause of action is overruled.

C.

Fifth

Cause of Action: Negligent Hiring, Supervision and Retention

Plaintiff

alleges sufficient facts for this cause of action. "Negligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.' " (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139.)

In

the notice of demurrer, Defendant indicates that it demurs to the fifth cause of action based on insufficiency of allegations under CCP § 430.10(e). However, in the memorandum of points and authorities, Defendant argues about the propriety of Plaintiff's request for punitive damages. This is irrelevant as to whether Plaintiff states a viable claim for negligent hiring and retention. Even so, Plaintiff sufficiently alleges all required elements. (See Compl., ¶¶ 41-46.)

The

demurrer as to the fifth cause of action is overruled.

Motion

to Strike

Defendant

Berberian Enterprises, Inc.'s dba Jons Marketplace also moves to strike portions of Plaintiff's complaint, including the five causes of action alleged in their entirety and references to punitive damages.

Courts

may strike allegations that are "not essential to the statement of a claim or defense," "neither pertinent to nor supported by an otherwise sufficient claim or defense," or "[a] demand for judgment requesting relief not supported by the allegations." (Code Civ. Proc., § 431.10(b).)

As

an initial matter, the Court declines to strike Plaintiff's first through fifth causes of action. The proper manner to attack causes of action is via demurrer, not a motion to strike. "Where a whole cause of action is the proper subject of a pleading challenge, the court should sustain a demurrer to the cause of action rather than grant a motion to strike." (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1281.) The Court overruled Defendant's demurrer as to each of these causes of action.

As

for punitive damages, the Court finds that the complaint does not seek any punitive damages against Defendant. Punitive damages are only sought specifically against Defendant Doe under the first through third causes of action. (See Compl., prayer, ¶¶ 1-3.) Plaintiff confirms this in his opposition brief. (Opp. at pp. 4-5.)

Because

there is no legal basis to strike a request for punitive damages alleged against another Defendant, the motion is denied. Again, Defendant never should have filed a motion to strike relief that is not sought against it.

Disposition

Defendant Berberian Enterprises, Inc.

dba Jons Marketplace's demurrer to Plaintiff's complaint is overruled.

Defendant

Berberian Enterprises, Inc. dba Jons Marketplace's motion to strike portions of Plaintiff's complaint is denied.

Defendant

Berberian Enterprises, Inc. shall file its answer to the complaint in 21 days.